

23AVCV00191 23AVCV00191

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-09-08

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Case Number: 23AVCV00191 Hearing Date: September 8, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

RODNEY ROUZAN,

Plaintiff,

v.

SHELLPOINT MORTGAGE SERVICING LLC; GHI INVESTMENTS LLC; and DOES 1 through 10, inclusive,

Defendants.

Case Number 23AVCV00191

[TENTATIVE]

RULING ON MOTION

Date of Hearing: September 8, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a fraud and quiet title action regarding a mortgage foreclosure. Defendant Leijun Tang moves to expunge the lis pendens on the subject property and for an award of attorney's fees as prevailing party.

On February 21, 2023, Plaintiff Rodney Rouzan (Plaintiff) filed a complaint against Defendants Shellpoint Mortgage Servicing LLC (Shellpoint) and GHI Investments LLC (GHI), asserting three causes of action for: (1) Wrongful Foreclosure; (2) Cancellation of Trustee Deed; and (3) Quiet Title. 22

Plaintiff alleged that on June 16, 2022, Shellpoint recorded a notice of default and an election to sell in the official records of Los Angeles County for the property located at 3109 Kilt Court, Lancaster, California 93535 (the Property). (Compl., ¶ 6.) Shellpoint allegedly then attempted to sell the Subject Property to GHI, and Plaintiff alleges the foreclosure and the sale were wrongful. (Compl., ¶ 8.) 23

On August 29, 2023, Plaintiff filed his First Amended Complaint (FAC), alleging the same causes of action and same Defendants, but adding numerous parties. 24

On September 27, 2023, Plaintiff filed a Motion for Order to Allow Recording of Lis Pendens on the Property, which was subsequently granted on November 15, 2023. 25

On May 20, 2024, Plaintiff's Notice of Lis Pendens was granted.

On June 10, 2024, Plaintiff filed the Notice of Pendency of Action (Lis Pendens), which was recorded on June 3, 2024.

On October 30, 2024, Plaintiff named Leijun Tang (Tang) as DOE 12.

On January 6, 2025, default was entered as to Tang.

On January 9, 2025, the Court granted Plaintiff's order quieting title, asserting Tang owns no right, title, estate, interest, or lien in the Property.

On August 20, 2025, Tang again moved to set aside and vacate entry of default and default judgment, which was granted on September 16, 2025, in part on the grounds that Tang was named as DOE 12 and default was entered after Plaintiff had already dismissed DOE 12.

On November 20, 2025, Tang filed a motion to enforce the Court's Order setting aside default judgment and cancel void instruments, which was granted on February 17, 2026.

On February 17, 2026, the Court issued an Order that (1) the order quieting title, (2) the Grant Deed in Furtherance of Quiet Title Judgment, and (3) any instruments, deeds, or conveyances executed or recorded in reliance thereon are void and of no force or effect. Title to the Property was restored to Tang.

On April 20, 2026, Plaintiff dismissed the entire action of all parties and all causes of action.

On May 13, 2026, Tang filed the present motion to expunge the lis pendens.

On July 27, 2026, Plaintiff filed a notice of filing of recorded withdrawal of notice of pendency of action (lis pendens).

On August 24, 2026, Plaintiff filed his opposition to Tang's request for attorney's fees and costs included in her motion to expunge the lis pendens.

On August 28, 2026, Tang filed a reply.

II. Request for Judicial Notice

Tang's Request for Judicial Notice – Tang requests that the Court take judicial notice of the following documents in support of her motion, listed below in correlation with the documents' respective exhibit numbers:

1. Deed of Trust: True and correct copy of the Deed of Trust executed by Plaintiff Rodney Rouzan on July 6, 2005, securing a \$280,856 loan against the Subject Property (3109 Kilt Court, Lancaster, California 93535), recorded with the Los Angeles County Recorder's Office on July 8, 2005, as Instrument No. 051607591.
2. Exhibit 2 — Trustee's Deed Upon Sale to GHI Investment, LLC: True and correct copy of the Trustee's Deed Upon Sale by which non-party GHI Investment, LLC acquired title to the Subject Property at the June 16, 2022 nonjudicial foreclosure sale for \$444,000.01, recorded with the Los Angeles County Recorder's Office on August 16, 2022, as Instrument No. 20220820444.
3. Exhibit 3 — Grant Deed from GHI Investment, LLC to Spirit X Investment, LLC: True and correct copy of the grant deed by which GHI Investment, LLC conveyed the Subject Property to Spirit X Investment, LLC on December 21, 2023, recorded with the Los Angeles County Recorder's Office.
4. Exhibit 4 — Grant Deed from Spirit X Investment, LLC to Leijun Tang: True and correct copy of the grant deed by which Spirit X Investment, LLC conveyed the Subject Property to Defendant Leijun Tang on August 6, 2024, recorded with the Los Angeles County Recorder's Office.
5. Exhibit 5 — Plaintiff's Verified First Amended Complaint: True and correct copy of the Verified First Amended Complaint filed by Plaintiff Rodney Rouzan on August 29, 2023 in the above-captioned action.
6. Exhibit 6 — Minute Order Sustaining Demurrer Without Leave to Amend (December 12, 2023): True and correct copy of the Minute Order entered on December 12, 2023, by this Court (then assigned to Hon. Stephen Morgan, Dept. A14), sustaining without leave to amend the demurrer of defendants Newrez LLC dba Shellpoint Mortgage Servicing and The Bank of New York Mellon, as Trustee, to Plaintiff's Verified First Amended Complaint.
7. Exhibit 7 — Judgment Dismissing Plaintiff's Entire Action (January 2, 2024): True and correct copy of the Judgment Dismissing Plaintiff's Entire Action as to defendants Newrez LLC dba Shellpoint Mortgage Servicing and The Bank of New York Mellon, as Trustee, signed and filed by this Court on January 2, 2024.
8. Exhibit 8 — Recorded Notice of Pendency of Action (Lis Pendens) (June 3, 2024): True and correct copy of the Notice of Pendency of Action (Lis Pendens) recorded by Plaintiff Rodney Rouzan with the Los Angeles County Recorder's Office on

June 3, 2024, as Instrument No. 20240360609, against the Subject Property. This is the operative Lis Pendens that is the subject of Defendant's Motion.

9. Exhibit 9 — Plaintiff's Verified Third Amended Complaint: True and correct copy of the Verified Third Amended Complaint filed by Plaintiff Rodney Rouzan on December 15, 2025 in the above-captioned action, asserting causes of action for Quiet Title, Cancellation of Instruments, Fraudulent Transfer, and Declaratory Relief against Defendant Tang and others.

10. Exhibit 10 — Defendant Leijun Tang and GHI Investment, LLC's Demurrer with Motion to Strike to the Third Amended Complaint: True and correct copy of the Demurrer with Motion to Strike to Plaintiff's Verified Third Amended Complaint filed by Defendant Tang and GHI Investment, LLC on January 21, 2026, in the above-captioned action, set for hearing on May 12, 2026.

11. Exhibit 11 — Plaintiff's Request for Dismissal (Without Prejudice) (April 20, 2026): True and correct copy of the Request for Dismissal of the entire action without prejudice filed by Plaintiff Rodney Rouzan on April 20, 2026 in the above-captioned action.

12. Exhibit 12 — Order of Dismissal in Plaintiff's 2012 Federal Action: True and correct copy of the August 3, 2012 order in Rouzan v. ReconTrust Company, N.A., et al., dismissing Plaintiff's federal-court action alleging "mortgage fraud" concerning the Subject Property.

13. Exhibit 13 — Court of Appeal Decision Affirming Dismissal of Plaintiff's 2014 State Court Action (August 2017): True and correct copy of the August 2017 Court of Appeal decision affirming the dismissal of Plaintiff's state court action concerning the Subject Property.

California Evidence Code section 452 permits judicial notice being taken of records of any court of California and any facts and propositions not reasonably subject to dispute and capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy. (Evid. Code., § 452, subd. (c), (h).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).) A court may also properly take judicial notice of recorded documents. (Md. Casualty Co. v. Reeder (1990) 221 Cal.App.3d 961, 977; Evans v. California Trailer Court, Inc. (1994) 28 Cal.App.4th 540, 549 (overruled in part on other grounds) [courts may take judicial notice of recorded deeds].) The Court may take judicial notice "not only of the existence and recordation of recorded documents but also of a variety of matters that can be deduced from the documents." (Fontenot v. Wells Fargo Bank, N.A. (2011) 198 Cal.App.4th 256, 265 (overruled in part on other grounds).)

Tang's request is GRANTED pursuant to Evidence Code sections 452, subdivisions (c), (d) and (h) and 453.

III. Legal Standard

Standard for Attorney's Fees Upon Expungement of Lis Pendens – A party to an action who asserts a real property claim may record a notice of pendency of action (lis pendens) in which that real property claim is alleged, to be recorded in the office of the recorder of each county in which all or part of the real property is situated. (Code Civ. Proc., § 405.20.) At any time after the lis pendens has been recorded, any party, or nonparty with an interest in the real property affected, may apply to the court in which the action is pending to expunge the notice. (Code Civ. Proc., § 405.30.) However, any non-party moving to expunge the lis pendens shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. (Id.)

With regard to attorney's fees in connection with a motion to expunge, section 405.38 provides:

The court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney's fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney's fees and costs unjust.

(Code Civ., Proc., § 405.38.)

IV. Discussion

Application – Tang moves to expunge the lis pendens on the Property pursuant to Code of Civil Procedure sections 405.31, 405.32, 128, subdivision (a), and for an award of attorney's fees and costs as prevailing party in the amount of \$4,323.70 incurred in bringing the present motion pursuant to Code of Civil Procedure section 405.38. (Notice of Motion, p. 2:15-3:7.)

As a preliminary matter, Tang's motion to expunge the lis pendens is moot. On July 27, 2026, Plaintiff filed a notice of filing of recorded withdrawal of the lis pendens on the Property, attached to which is a copy of the withdrawal, recorded on July 24, 2026. (Plaintiff's Notice of Filing, Ex. 1.) The recording of a withdrawal of a lis pendens by the party who recorded the lis pendens in the office of the recorder in which the lis pendens was recorded sufficiently withdraws and extinguishes the lis pendens. (Code Civ. Proc., § 405.50; *Federal Deposit Ins. Corp. v. Charlton* (1993) 17 Cal.App.4th 1066, 1069.) The parties do not dispute the mootness of Tang's motion for expungement. (See Opp., p. 2:9-13; Reply, p. 9:12-13.)

Therefore, Tang's motion is DENIED as moot. However, despite the filing of the withdrawal, the Court may still rule on Tang's request for attorney's fees as prevailing party in bringing the motion to expunge.

As to the question of sanctions, the trial court has the discretion to consider whether, "in light of all the circumstances, the imposition of fees would otherwise be unjust." (*Castro v. Superior Court* (2004) 116 Cal.App.4th 1010, 1024-25.) *Castro*, supra, 116 Cal.App.4th at 1023.)

Plaintiff argues that he acted with substantial justification in recording the lis pendens and that his prompt, voluntary withdrawal delivered Tang relief on a faster timeline than the motion itself could have achieved, rendering the imposition of fees unjust. (Opp., p. 3:2-8.) Plaintiff asserts he had a reasonable basis in law and fact for recording the lis pendens, and his decision to withdraw the notice voluntarily to spare the parties and court the expense of litigating the motion does not convert a justified recording into a sanctionable act. (Opp., p. 6:12-18.)

The Court also considers the conduct of both sides throughout the course of this litigation. The Court exercises its discretion to deny the request for attorneys' fees. The Court will award \$88.70 in filing costs

V. Conclusion

Defendant Leijun Tang's Motion to Expunge Notice of Pendency of Action (Lis Pendens) is DENIED as Moot.

Defendant Leijun Tang's Request for Attorney's Fees and Costs Against Plaintiff Rodney Rouzan is GRANTED in the amount of \$88.70 in costs. The Court exercises its discretion to DENY the request for attorney's fees. Plaintiff shall tender payment in full to Plaintiff's counsel Seyfnia & Prybylo, LLP within 30 days of this Order.